Property Relations Doctrine Bank

PFR · Uribe · All 37 cases in the Block I-B digests masterfile (FC 74–148) · Facts and key doctrines per case, grouped by syllabus topic

Built from the class digests masterfile. Old Civil Code / NCC article numbers are kept as the cases cite them; the Family Code counterpart is noted where it matters (NCC 160 → FC 116; NCC 158 → FC 120; NCC 166/173 → FC 124; NCC 188 → FC 133; NCC 189 → FC 104/131; NCC 190–191 → FC 134–136).

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Donations between spouses (FC 87)

1 *Matabuena v. Cervantes*

G.R. No. L-28771, 1971 · Fernando, J.

FACTS

- In 1956 Felix Matabuena donated land to Petronila Cervantes, his common-law partner; she accepted.
- They married in 1962; Felix died intestate months later.
- His sister Cornelia (sole collateral heir) claimed the land; the trial court upheld the donation because it was made before the marriage.

KEY DOCTRINES

1. **The prohibition on donations between spouses during the marriage (NCC 133, now FC 87) also covers common-law partners. The policy (prevent undue influence) applies with greater force to concubinage.**
2. **"So long as marriage remains the cornerstone of our family law, reason and morality alike demand that the disabilities attached to marriage should likewise attach to concubinage."**
3. **A purely literal reading is corrected by the law's avowed objective.**

> **Held:** Donation void. The land passed by intestacy: Petronila, as widow, gets one-half; Cornelia, as sister, the other half (NCC 1001).

Absolute community of property

2 *Ko v. Aramburo*

G.R. No. 190995, 2017 · Tijam, J.

FACTS

- Seven lots were ceded in 1970 to Spouses Ko and Spouses Simeon & Virginia Aramburo, who then ceded 1/3 to the heirs of their brother Augusto.
- Simeon and Virginia separated in 1973. In 1974 Simeon sold "his" share to his sister Corazon; Virginia's signature as consenting spouse was forged (NBI).
- Corazon titled everything in her name. Virginia and Augusto's heirs sued in 1993. Old Civil Code governs.

KEY DOCTRINES

1. **Property acquired during the marriage is presumed conjugal (NCC 160); rebuttal needs strong, clear and convincing proof. What matters is the time of acquisition, not whose name appears; "married to" merely describes civil status.**
2. **Sale of a co-owner's share by one who does not own it is void ab initio and imprescriptible (nemo dat; NCC 1409(3), 1410).**
3. **Under the OCC, the husband's sale of conjugal realty without the wife's consent is voidable, not void (NCC 166), annullable within 10 years (NCC 173). After that, the wife or her heirs may only demand the value of her share. (Contrast FC 124: void.)**

> **Held:** Augusto's heirs recover their 1/3 (titles cancelled as to them). Virginia's action as to the conjugal 1/3 prescribed; she may only demand its value.

3 *Spouses Abrenica v. Law Firm of Abrenica, Tungol and Tibayan*

G.R. No. 180572, June 18, 2012 · Sereno, J.

FACTS

- Atty. Erlando Abrenica was ordered to remit partnership funds to his former law firm; the judgment became final.
- On execution, the sheriff levied two vehicles (bought 1992 and 1997) and a house and lot.
- His second wife Joena (married May 28, 1998) filed a third-party claim: the properties were ACP of their marriage, so half was hers. Erlando had three legitimate children by his first marriage.

KEY DOCTRINES

1. **FC 92(3): property acquired before the marriage by a spouse who has legitimate descendants by a former marriage, and its fruits and income, is excluded from the ACP.**
2. **The exclusion protects the hereditary rights of the children of the prior marriage; such property stays the acquiring spouse's exclusive property and answers for his own obligations.**

> **Held:** Petition denied; the properties acquired before May 28, 1998 are Erlando's exclusive property and were validly levied.

4 *Vda. de Delizo v. Delizo*

69 SCRA 216, January 30, 1976 · Antonio, J.

FACTS

- Nicolas Delizo married Rosa Villasfer (1891–1909, 18 years, 3 children), then Dorotea de Ocampo (1911–1957, 46 years, 9 children).
- The Caanawan homestead (~66 ha) was occupied from 1905; only ~20 ha were cleared before Rosa died, and the 5-year homestead requirement was not completed during the first marriage. The rest was developed during the second marriage.
- Its fruits, plus loans, bought many other properties. The first marriage's partnership was never liquidated.

KEY DOCTRINES

1. **For homesteads, the decisive time is when the public land law requirements are fulfilled (Balboa v. Farrales); rights are apportioned by the extent of compliance during each marriage.**
2. **Where two successive partnerships were never separately liquidated and each one's capital or earnings cannot be determined, the total mass is divided between the partnerships in proportion to the duration of each (NCC 189; now FC 104, 131).**

> **Held:** First partnership 18/64, second 46/64, each then halved between the spouses; Nicolas' half goes to his 12 children and widow.

CPG: when it applies; suppletory rules

5 *Philippine National Bank v. Quintos*

G.R. No. 22383, October 6, 1924 · Villamor, J.

FACTS

- PNB granted the spouses Ansaldo a credit secured by pledged shares; the overdraft debt reached ₱31,785.96.
- The securities proved insufficient. The spouses argued the obligation was not solidary and the wife should pay only what she used.

KEY DOCTRINES

1. **A debt contracted during the marriage is chargeable to the conjugal partnership whichever spouse contracted it (OCC 1408).**
2. **The partnership does not merge the spouses' properties; each keeps his or her own. This is "an insurmountable obstacle to the presumption of solidarity between the spouses." Solidarity exists only by stipulation or law.**
3. **Hence, if conjugal property is insufficient, the spouses are liable jointly (pro rata), not solidarily (partnership rules).**

> **Held:** Judgment for PNB affirmed: conjugal property first, then the spouses jointly.

CPG: presumption of conjugality (NCC 160 / FC 116)

6 *Jocson v. Court of Appeals*

G.R. No. L-55322, February 16, 1989 · Medialdea, J.

FACTS

- Emilio Jocson sold almost all his properties to his daughter Agustina by three notarized deeds; his son Moises sued to annul them.
- Moises argued the sales were simulated and that the lands were unliquidated conjugal property, since the titles read "Emilio Jocson, married to Alejandra Poblete."
- The CA held the action (based on fraud) had prescribed.

KEY DOCTRINES

1. **An action to declare a contract void for a simulated price is imprescriptible (NCC 1352, 1409, 1410), not merely one for fraud.**
2. **The party invoking NCC 160 must first prove the property was acquired during the marriage; this is a condition sine qua non.**
3. **"Married to" in a title only describes civil status. Registration does not confer title; property may have been acquired while single and registered after the wedding. Absent proof, property registered in one spouse's name is presumed exclusively his.**

> **Held:** Sales upheld (consideration proved; inadequacy of price not shown); the lands were Emilio's exclusive property.

7 *Castro v. Miat*

G.R. No. 143297, February 11, 2003 · Puno, J.

FACTS

- Spouses Moises and Concordia Miat bought the Paco property on installments during the marriage; Concordia died in 1978. Moises paid the balance in 1984 and titled it in his name as widower.
- The family agreed orally that Paco would go to sons Romeo and Alexander; Alexander later sold his share to Romeo.
- Moises then sold Paco to the Castros, who knew of Romeo's claim and that Romeo held the title.

KEY DOCTRINES

1. **Property acquired by onerous title during the marriage at the expense of the common fund is conjugal (NCC 153(1)).**
2. **NCC 160 does not require proof that partnership funds were used; the presumption applies even when the manner of acquisition does not appear.**
3. **A sale with mortgage passes title on delivery, so title was acquired during the partnership.**
4. **An oral partition among heirs is valid and enforceable (Pada-Kilario); a buyer with knowledge of another's adverse claim is not in good faith.**

> **Held:** Paco is conjugal; the oral partition stands; the Castros are not buyers in good faith.

8 *Torela v. Torela*

G.R. No. L-27843, 93 SCRA 391 (1979) · Abad Santos, J.

FACTS

- Lot 3770 was decreed in 1929 to "Felimon Torela, married to Graciana Gallego." After Graciana's death Felimon remarried, had the title amended, and sold the lot.
- His children by Graciana claimed half as their mother's conjugal share; Felimon testified he inherited it from his parents.

KEY DOCTRINES

1. **All property of the marriage is presumed conjugal, but the party invoking the presumption must first prove acquisition during the marriage.**
2. **"Married to" in the decree merely describes civil status; registration during the marriage is not proof of acquisition during the marriage.**

> **Held:** CA affirmed: the lot is Felimon's inherited, exclusive property.

9 *Philippine National Bank v. Court of Appeals*

G.R. No. 109563, 1996 · Mendoza, J. (as digested in the masterfile)

FACTS

- Spouses Bascos borrowed ₱15,000 from PNB in 1979; PNB unilaterally raised the interest from 12% to 28% and foreclosed.
- The spouses sued, invoking the Usury Law (P.D. 1684) and NCC 1959.

KEY DOCTRINES

1. **An escalation clause must be paired with a de-escalation clause (Banco Filipino v. Navarro).**
2. **Unilateral increases violate the mutuality of contracts (NCC 1308); assent cannot be implied from silence to the bank's letters.**

> **Held:** CA affirmed. NOTE: this digest is the interest-rate case. The PNB v. CA cited in the presumption cases (Cuenca; Magallon) is 153 SCRA 435 (1987): the presumption does not apply when the title is in one spouse's name and innocent third persons are involved.

10 *Magallon v. Montejo*

G.R. No. 73733, 146 SCRA 282 (1986) · Narvasa, J.

FACTS

- The children of Martin Lacerna and his deceased wife Eustaquia won a final judgment that half the homestead was Eustaquia's conjugal share.
- Meanwhile the patent was issued to "Martin Lacerna, married to Epifania Magallon." Epifania intervened, claiming it was conjugal property of her marriage.

KEY DOCTRINES

1. **"Married to Epifania Magallon" merely describes Martin's civil status; it does not prove the land belongs to a partnership with her.**
2. **Registration through fraud or mistake creates a constructive trust in favor of Eustaquia's heirs (NCC 1456).**
3. **A wife is in privity with her husband as to community property and is bound by a judgment against him (Cutting v. Bryan).**
4. **A writ of execution cannot vary the judgment; partition must follow Rule 69.**

> **Held:** Writ annulled; partition to proceed under Rule 69.

11 *Cuenca v. Cuenca*

G.R. No. 72321, 168 SCRA 335 · Gutierrez, Jr., J.

FACTS

- Two families of Agripino Cuenca claimed his lands: children of Maria Bangahon and children of Engracia Basadre.
- Engracia's children offered sketch plans showing the lands were surveyed and approved while Agripino was married to Engracia.

KEY DOCTRINES

1. **For homesteads, the time of acquisition is the perfection of the homestead claim, not the survey.**
2. **The presumption of conjugality applies only to property acquired during the marriage; it does not operate when there is no showing when the property was acquired (PNB v. CA; Magallon; Maramba).**
3. **It cannot prevail when the title is in one spouse's name and the rights of innocent third persons are involved.**

> **Held:** Petition dismissed; a new trial would not change the result.

12 *Dela Peña v. Avila*

G.R. No. 187490, February 8, 2012 · Perez, J.

FACTS

- Land titled to "Antonia R. Dela Peña, married to Antegono A. Dela Peña." Antonia mortgaged it, then sold it to Gemma Avila, who mortgaged it to FEBTC, which foreclosed.
- Antonia and her son sued: the land was conjugal, the sale was simulated, and the bank was in bad faith.

KEY DOCTRINES

1. **Proof that partnership funds were used is not required, but proof of acquisition during the marriage is an essential condition for the presumption (Francisco v. CA).**
2. **"Married to" describes civil status only; the property may have been acquired while single. Without proof of the date of acquisition, the property is the registered spouse's.**
3. **A mortgagee whose mortgage predates any adverse claim may foreclose (NCC 2126).**

> **Held:** CA affirmed: the land was Antonia's paraphernal property; the sale and the bank's foreclosure stand.

13 *Andrade v. Tan*

G.R. Nos. 171904 & 172017, August 7, 2013 · Perlas-Bernabe, J.

FACTS

- Rosario Vda. de Andrade sold four lots (titled to her as "widow") to Bobby Tan and her son; Tan later consolidated title.
- Fourteen years later, her children sued: the sale was an equitable mortgage, and the lots were conjugal property of Rosario and their late father.

KEY DOCTRINES

1. **Before NCC 160 operates, the party invoking it must prove the property was acquired during the marriage; the children proved neither the date of acquisition nor the use of conjugal funds.**
2. **Titles issued after the husband's death, solely to Rosario as widow, plus her undisputed declaration of sole ownership, show exclusive property.**
3. **Laches barred the siblings, who knew of the transactions.**

> **Held:** Tan's petition granted; the RTC dismissal reinstated.

14 *Mendoza v. Reyes*

G.R. No. L-31618, 124 SCRA 154 (1983) · Gutierrez, Jr., J.

FACTS

- Ponciano and Julia Reyes (married 1915) bought two lots in 1947 on installments in Julia's name "with my marital consent," financed by joint RFC loans.
- Separated in fact, Julia sold the lots to the Mendozas, who had earlier required Ponciano's consent to a lease.
- Ponciano sued to annul the sale.

KEY DOCTRINES

1. **Proof of acquisition during the marriage suffices to make the NCC 160 presumption operate (Camia de Reyes; Laluan v. Malpaya); registration in one spouse's name does not destroy the conjugal character.**
2. **Money borrowed by both spouses is conjugal, so property bought with it is conjugal (NCC 161; Castillo v. Pasco).**
3. **Estoppel applies only between the one who misrepresented and the one who relied on it.**
4. **Buyers who knew of the joint mortgages and had required the husband's consent for a lease are not buyers in good faith.**

> **Held:** CA affirmed: the lots are conjugal and the sale is annulled.

CPG: exclusive property

15 *Laperal v. Katigbak*

G.R. No. L-16951, 1962 · Labrador, J.

FACTS

- In 1950 Ramon Katigbak alone borrowed ₱14,000 and received jewelry worth ₱97,500 from the Laperals.
- A first suit against Ramon and his wife Evelina was dismissed as to her (she did not sign). A second suit sought to reach the fruits of her paraphernal property and their conjugal property.
- On remand the trial court ordered Evelina to pay half.

KEY DOCTRINES

1. **(From the earlier ruling in the same litigation) A debt contracted by the husband binds conjugal assets; under the NCC, the fruits of the wife's paraphernal property answer for the husband's debts only if they benefited the family. Obligations incurred under the old Code carry the vested right to reach conjugal property.**
2. **Res judicata: a suit to make the wife personally liable and one to make her paraphernal property liable are the same claim; a cause of action cannot be split (Rule 2, Sec. 3).**

> **Held:** Evelina absolved; the second suit is barred by the prior judgment.

16 *Berciles v. GSIS*

128 SCRA 53, 1984 · Guerrero, J.

FACTS

- Judge Berciles died in 1979 without naming a retirement beneficiary.
- His legal wife Iluminada and four legitimate children competed with Flor Fuentebella and her children (no marriage proved).
- GSIS divided the benefits among both families.

KEY DOCTRINES

1. **Retirement gratuity with no named beneficiary accrues to the estate and passes by intestacy.**
2. **Retirement premiums are presumed conjugal (NCC 160) absent proof they came from the deceased's exclusive funds: half to the widow, half to the estate.**
3. **Illegitimate filiation must be strictly proved (birth certificate signed by the father, etc.); baptismal certificates, photos and testimony are insufficient.**

> **Held:** GSIS resolution reversed as to Flor's children; the widow and legitimate children are the sole heirs.

CPG: exclusive property; administration

17 *Veloso v. Martinez*

G.R. No. 8715, 28 Phil. 255 (1914) · Johnson, J.

FACTS

- Lucia Martinez inherited jewelry from her mother.
- Her husband Domingo Franco borrowed ₱4,500 from Veloso and "pledged" her jewels, which stayed in a locked box whose key remained with Franco.
- Lucia never consented or transferred administration to her husband by public instrument.

KEY DOCTRINES

1. **Property a married woman inherits from her parent is acquired by gratuitous title and is her paraphernal property.**
2. **The wife retains ownership and administration of paraphernal property unless she delivers it to her husband by public instrument (OCC 1382, 1384; NCC 136–137; cf. FC 110).**
3. **Without her consent or such transfer, the husband cannot pledge or encumber it; the pledge is void as to her.**

> **Held:** Lucia keeps the jewels; Veloso must return them or pay ₱6,000.

CPG: exclusive property (redemption, exchange)

18 *Plata v. Yatco*

G.R. No. L-20825, 12 SCRA 718 (1964) · J.B.L. Reyes, J.

FACTS

- Amalia Plata bought land while single (title: "single"), sold it to Saldaña, and got it back seven months later during her marriage (title: "married to Gaudencio Begosa").
- She mortgaged it as absolute owner; her husband signed as "co-mortgagor" as an afterthought. The mortgagee foreclosed and won ejectment against the husband alone.
- Amalia, not a party, refused to vacate and was cited for contempt.

KEY DOCTRINES

1. **Property brought to the marriage is exclusive (NCC 148). Its conveyance and reconveyance during the marriage do not make it conjugal without proof that conjugal funds paid for the repurchase.**
2. **The husband's joinder as co-mortgagor does not change the paraphernal character.**
3. **The wife possesses and administers paraphernal property in her own right (NCC 136, 137, 140); an ejectment judgment against the husband alone does not bind her, and her refusal is not contempt.**

> **Held:** Contempt order annulled.

19 *Lim v. Garcia*

G.R. No. L-2904, 7 Phil. 320 (1907) · Carson, J.

FACTS

- Hilario Lim brought a house and lot, ₱10,000 and a ₱700 lot to the marriage; conjugal funds built on that lot.
- His wife Isabel received three parcels from third persons in exchange for land she inherited.
- After his death, his heirs argued that since he brought much more than she did, the whole estate was his.

KEY DOCTRINES

1. **All property at dissolution is presumed conjugal (OCC 1407) unless specifically traced to separate funds; showing that one spouse brought more capital is not enough.**
2. **Buildings erected during the marriage with conjugal funds on one spouse's land are conjugal, after reimbursing the landowner the land's value (OCC 1404; now FC 120).**
3. **Property acquired by exchange for a spouse's separate property (e.g., an inheritance) remains that spouse's separate property (OCC 1396(3); FC 109(3)).**

> **Held:** Distribution affirmed: ₱700 reimbursed to Hilario's estate, the rest conjugal; Isabel's parcels are hers.

CPG: administration of exclusive property

20 *Manotok Realty v. Court of Appeals*

G.R. No. L-45038, 149 SCRA 372 (1987) · Gutierrez, Jr., J.

FACTS

- The lot was Clara Tambunting's paraphernal property. She died April 2, 1950; her estate went under administration.
- On April 22, 1950, her husband Vicente Legarda "sold" the lot to Madlangawa (₱1,500 deposit). He became special administrator only on April 28, 1950.
- Manotok Realty later bought the subdivision from the estate with probate court approval.

KEY DOCTRINES

1. **The husband cannot administer or dispose of his wife's paraphernal property without a public instrument from her (NCC 136, 137). After her death he was neither owner nor administrator when he sold.**
2. **Such a sale is void ab initio, cannot be ratified (NCC 1409), and a sale of estate property needs a probate court order of sale (Rule 89, Sec. 1).**

> **Held:** CA reversed; Madlangawa must surrender the lot and pay rentals, with his deposit refunded.

CPG: what is conjugal

21 *Quintos de Ansaldo v. Sheriff of Manila*

G.R. No. 43257, 64 Phil. 115 (February 19, 1937) · Abad Santos, J.

FACTS

- Angel Ansaldo agreed to indemnify a surety company that guaranteed a third person's (Agcaoili's) credit line; the surety paid ₱19,065.17 and got judgment against Ansaldo.
- The sheriff levied on the spouses' joint savings and current accounts (₱636.80), which came from the fruits of the wife's paraphernal property.

KEY DOCTRINES

1. **The fruits of paraphernal property are conjugal assets, but they are not liable for the husband's personal obligations unless these benefited the family (OCC 1385, 1386); OCC 1408 is subject to that qualification.**
2. **No half of the conjugal fund can be levied as the husband's "share": a spouse's right to one-half of conjugal property does not vest until the partnership is dissolved (it is a mere inchoate right).**

> **Held:** Levy declared void; the surety companies to return ₱636.80 with interest.

22 *Zulueta v. Pan American World Airways*

G.R. No. L-28589, 1972 · Concepcion, J.

FACTS

- Rafael Zulueta was offloaded at Wake Island; the family won ₱1.5M+ in damages against PANAM.
- Years later, his separated wife settled alone with PANAM for ₱50,000 and asked that the case be dismissed as to her.

KEY DOCTRINES

1. **Rights and damages arising from a contract entered into during the marriage, paid with conjugal funds, belong to the conjugal partnership.**
2. **The wife cannot bind the partnership without the husband's consent except as the law provides; she cannot unilaterally compromise conjugal damages.**

> **Held:** Motion denied; damages reduced but affirmed, less the ₱50,000 already paid to Mrs. Zulueta.

CPG: what is conjugal (money from loans)

23 *Palanca v. Smith, Bell & Co.*

9 Phil. 131 · Johnson, J.

FACTS

- Emiliano Boncan borrowed ₱14,000 from a bank, using his wife Alejandra's property (with her consent) as security, and built a house with it.
- He later transferred the house to her. His creditor Smith, Bell & Co. levied on the house.

KEY DOCTRINES

1. **Money the husband borrows on the credit of the wife's property becomes conjugal (OCC 1401(3)); a house built with it is conjugal and answers for the husband's debts (OCC 1408).**
2. **Tolentino: no real conflict with Lim Queco, since here the husband's loan was a charge on the partnership; under NCC 161 / FC 121 this holds only if the loan benefited the partnership.**

> **Held:** Levy upheld; the house is conjugal.

24 *Lim Queco v. Cartagena*

G.R. No. 47507, 71 Phil. 163 (1940) · Diaz, J.

FACTS

- Elena owned four lots from before her marriage to Rodolfo. She alone borrowed ₱3,500 from El Ahorro Insular, mortgaging her lots (with his consent), to build a house; the spouses added ₱795.90.
- With his consent she sold the lots and house to Lim Queco on installments. The spouses later separated, agreed to dissolve the partnership, and he got a Mexican divorce.
- Lim Queco asked the court whom to pay.

KEY DOCTRINES

1. **The wife administers her paraphernal property unless she transfers administration by notarial instrument (OCC 1384).**
2. **Money borrowed by the wife on the security of her own paraphernal property is paraphernal, not conjugal (not within OCC 1385, 1401); it is not "fruits" of the property.**
3. **Any small conjugal contribution was more than offset by the ₱820.61 the husband collected for himself.**

> **Held:** Elena has the better right to the payments.

CPG: improvements on separate property (FC 120)

25 *Calimlim-Canullas v. Fortun*

G.R. No. 57499, 129 SCRA 675 (1984) · Melencio-Herrera, J.

FACTS

- Fernando Canullas inherited the land; the family house was built and coconuts planted with conjugal funds and his wife Mercedes' industry.
- He abandoned the family, lived with Corazon Daguines (both later convicted of concubinage), and sold her the lot and house without Mercedes' consent.

KEY DOCTRINES

1. **Under NCC 158, buildings constructed with conjugal funds on one spouse's land make both land and building conjugal; the owner-spouse becomes a creditor of the partnership for the land's value, reimbursed at liquidation. Conversion retroacts to the construction (Padilla v. Paterno).**
2. **A sale by a husband to his concubine is void as contrary to morals and public policy; the ban on sales and donations between spouses extends to those living together without marriage.**

> **Held:** Sale of the lot, house and improvements declared void. (FC 120 now: ownership vests only upon reimbursement at liquidation.)

26 *Maramba v. Lozano*

G.R. No. L-21533, 20 SCRA 474 (1967) · Makalintal, J.

FACTS

- Maramba won a money judgment against Nieves de Lozano and her (deceased) husband; land in Nieves' name was levied.
- The court held her liability only joint (half).

KEY DOCTRINES

1. **A final judgment cannot be amended in substance through a nunc pro tunc order.**
2. **A judgment that does not say "jointly and severally" imposes only joint liability.**
3. **The NCC 160 presumption needs proof of acquisition during the marriage; absent that, the title in her name is determinative.**
4. **Building a conjugal house on one spouse's land does not automatically make the land conjugal; the partnership has only a usufruct until the value is paid at liquidation.**

> **Held:** Order affirmed; Nieves liable only for her half.

CPG: charges and obligations

27 *Javier v. Osmeña*

G.R. No. 9984, 34 Phil. 336 (1916) · Arellano, C.J.

FACTS

- Petrona Javier inherited two urban lots. Her husband Collantes owed the Osmeña estate ₱26,467.94; on execution, her lots were sold over her protest.
- The estate asked that the lots' revenues answer for the debt and that a receiver be appointed.

KEY DOCTRINES

1. **The fruits of paraphernal property are conjugal and answer for the marriage expenses (OCC 1385, 1401); the husband's creditor may reach the fruits, not the paraphernal property itself.**
2. **Debts the husband incurs in the industry or profession by which he supports the family are not personal debts, so OCC 1386 does not shield the fruits.**
3. **The wife keeps the management of her paraphernal property; no receiver absent a statutory ground.**

> **Held:** Fruits and revenues of the wife's lots are liable for the husband's debt; no receiver.

28 *Vda. de Sta. Romana v. PCIB*

L-56479, 118 SCRA 330 (1982) · Vasquez, J.

FACTS

- PCIB sued Ramon Sta. Romana alone for the unpaid price of a lot he bought from the Hodges estate; execution followed.
- After his death, his widow claimed her half could not be reached because she was not a party.

KEY DOCTRINES

1. **A debt the husband contracted for the benefit of the conjugal partnership (the unpaid price of a lot) is chargeable to the partnership.**
2. **As administrator, the husband may be sued alone for partnership obligations; the wife need not be joined (but the husband must be joined in suits against the wife, NCC 113).**
3. **Res judicata barred the relitigation.**

> **Held:** Petition denied.

29 *DBP v. Adil*

G.R. No. L-48889, 161 SCRA 307 (May 11, 1988)

FACTS

- Spouses Confesor obtained a ₱2,000 agricultural loan; after it prescribed, the husband alone signed a new promissory note acknowledging it.

KEY DOCTRINES

1. **A debtor who signs a new note after prescription expressly renounces the prescription already obtained (NCC 1112).**
2. **The husband, as administrator (NCC 165), binds the conjugal partnership by debts contracted for its benefit.**

> **Held:** City Court judgment against the spouses reinstated.

30 *Luzon Surety Co. v. de Garcia*

G.R. No. L-25659, 30 SCRA 111 (1969) · Fernando, J.

FACTS

- Vicente Garcia signed an indemnity agreement in favor of Luzon Surety to accommodate Ladislao Chavez's crop loan.
- On default, the surety garnished sugar quedans in the names of Vicente and his wife.

KEY DOCTRINES

1. **A husband who acts as guarantor or surety for a third person does not act for the benefit of the conjugal partnership; the benefit goes to the third person (NCC 161(1)).**
2. **Making the partnership answer would defeat the policy of protecting the family's financial stability; the husband may not assume such risks for it.**

> **Held:** CA affirmed: the conjugal property is not liable.

31 *BA Finance Corp. v. Court of Appeals*

G.R. No. 61464, 161 SCRA 608 (May 1988) · Gutierrez, Jr., J.

FACTS

- Augusto Yulo, who had already left his family, borrowed ₱591,003.59 using a forged SPA from his wife Lily, owner of A&L Industries.
- BA Finance attached A&L's properties.

KEY DOCTRINES

1. **A&L, established during the marriage, is presumed conjugal even though registered in Lily's name alone.**
2. **But conjugal property answers for the husband's obligations only if contracted for the benefit of the partnership (Luzon Surety); this loan was for Augusto's own benefit.**
3. **Wrongful attachment without bad faith yields actual damages only.**

> **Held:** BA Finance to pay Lily ₱660,000 as actual damages.

32 *Carlos v. Abelardo*

G.R. No. 146504, 380 SCRA 361 (April 9, 2002) · Kapunan, J.

FACTS

- Honorio Carlos advanced US$25,000 to his daughter Maria and son-in-law Manuel to buy a house and lot in Parañaque.
- Maria acknowledged the loan; Manuel refused to sign, claimed it was his share in Carlos' firm, and threatened his father-in-law.

KEY DOCTRINES

1. **The US$25,000 was a personal loan, proved by Carlos' personal check, Maria's acknowledgment and the demand letter.**
2. **A debt contracted during the marriage that redounded to the family's benefit (it bought the conjugal home) binds the partnership even without the other spouse's consent (FC 121(2)–(3)); if the partnership is insufficient, the spouses are solidarily liable.**

> **Held:** CA reversed; Manuel ordered to pay the loan plus reduced moral and exemplary damages and attorney's fees.

CPG: disposition and encumbrance

33 *Heirs of Aguilar-Reyes v. Mijares*

G.R. No. 143826, 410 SCRA 97 (August 28, 2003) · Ynares-Santiago, J.

FACTS

- Vicente and Ignacia Reyes, separated in fact, owned a conjugal lot. In 1983 Vicente sold it to the Mijares spouses after falsely claiming Ignacia was dead and getting court authority as guardian.
- Ignacia sued in 1986 to annul the sale.

KEY DOCTRINES

1. **Under the NCC, the husband's alienation of conjugal realty without the wife's consent is voidable; she may sue during the marriage and within 10 years (NCC 166, 173).**
2. **Sales after August 3, 1988 without consent are void (FC 124; Guiang v. CA).**
3. **A voidable sale is annulled in its entirety, not only as to the wife's share (Bucoy v. Paulino).**
4. **Buyers who ignore red flags (a death certificate dated before the death, a deed naming the seller as married) are not in good faith.**

> **Held:** Sale annulled entirely; title to the heirs; Vicente refunds ₱110,000 with interest; damages to the heirs.

CPG: dissolution and liquidation

34 *Beumer v. Amores*

G.R. No. 195670, December 3, 2012 · Perlas-Bernabe, J.

FACTS

- Dutch national Willem Beumer and Filipina Avelina Amores married in 1980; the marriage was declared void under FC 36 in 2000.
- He sought half of four lots titled in her name, admitting he paid for them and titled them in her name to avoid the constitutional ban.

KEY DOCTRINES

1. **An alien who knowingly buys Philippine land in violation of the Constitution (Art. XII, Sec. 7) cannot recover the price on dissolution, whether by equity or unjust enrichment (Muller v. Muller; Frenzel v. Catito).**
2. **He comes with unclean hands; in pari delicto (NCC 1412) leaves him where he is.**
3. **The ban covers land, not improvements: the houses were properly declared co-owned.**

> **Held:** Petition denied; the lots go to Amores, the houses are co-owned, his tools are his.

CPG: support during liquidation (FC 133)

35 *Santero v. CFI of Cavite*

G.R. Nos. L-61700-03, 153 SCRA 728 (1987) · Paras, J.

FACTS

- The natural children of Pablo Santero sought allowances from his estate during settlement; some were of age, employed or married.

KEY DOCTRINES

1. **Under NCC 188 (now FC 133), support during liquidation goes to the surviving spouse and the children without distinction; being of age, employed or married does not matter.**
2. **The Rules of Court (Rule 83, Sec. 3), which limit allowances to the widow and minor or incapacitated children, cannot restrict the substantive right in the Code.**
3. **Allowances are advances on their shares in the inheritance.**

> **Held:** Petition dismissed; allowances upheld.

Judicial separation of property

36 *Garcia v. Manzano*

103 Phil. 798 (May 28, 1958) · J.B.L. Reyes, J.

FACTS

- Husband Gonzalo Garcia, separated in fact since 1948, sued for accounting and judicial separation of property, alleging his wife took over and mismanaged the conjugal property.

KEY DOCTRINES

1. **The grounds for judicial separation of property (NCC 191; now FC 135) are limitative and exclusive; public policy disfavors separation during marriage.**
2. **Under the NCC the remedies for abuse of administration were the wife's; a husband who is the legal administrator must instead reassert control, revoke any authority he gave, and sue to annul unauthorized acts.**

> **Held:** Dismissal affirmed.

37 *Lacson v. San Jose-Lacson*

24 SCRA 837 (1968) · Castro, J.

FACTS

- Spouses separated in fact signed a compromise: dissolution of the conjugal partnership, separation of property, and division of custody of their four children; the CFI approved it.
- The wife later attacked the custody terms.

KEY DOCTRINES

1. **Spouses may separate their property and dissolve the partnership during the marriage if judicial approval is obtained beforehand (NCC 190; now FC 134, 136), and creditors are not prejudiced.**
2. **Approving the property separation does not legalize the de facto separation.**
3. **Custody: no mother shall be separated from a child under seven (NCC 363); that part of the compromise is void. A child over ten may choose a parent.**

> **Held:** Property separation upheld; custody award of the two children under seven voided; support may be increased.

One-line doctrine table (last-minute review)

1	*Matabuena v. Cervantes*	The prohibition on donations between spouses during the marriage (NCC 133, now FC 87) also covers common-law partners. The policy (prevent undue influence) applies with greater force to concubinage.
2	*Ko v. Aramburo*	Property acquired during the marriage is presumed conjugal (NCC 160); rebuttal needs strong, clear and convincing proof. What matters is the time of acquisition, not whose name appears; "married to" merely describes civil status.
3	*Spouses Abrenica v. Law Firm of Abrenica, Tungol and Tibayan*	FC 92(3): property acquired before the marriage by a spouse who has legitimate descendants by a former marriage, and its fruits and income, is excluded from the ACP.
4	*Vda. de Delizo v. Delizo*	For homesteads, the decisive time is when the public land law requirements are fulfilled (Balboa v. Farrales); rights are apportioned by the extent of compliance during each marriage.
5	*Philippine National Bank v. Quintos*	A debt contracted during the marriage is chargeable to the conjugal partnership whichever spouse contracted it (OCC 1408).
6	*Jocson v. Court of Appeals*	An action to declare a contract void for a simulated price is imprescriptible (NCC 1352, 1409, 1410), not merely one for fraud.
7	*Castro v. Miat*	Property acquired by onerous title during the marriage at the expense of the common fund is conjugal (NCC 153(1)).
8	*Torela v. Torela*	All property of the marriage is presumed conjugal, but the party invoking the presumption must first prove acquisition during the marriage.
9	*Philippine National Bank v. Court of Appeals*	An escalation clause must be paired with a de-escalation clause (Banco Filipino v. Navarro).
10	*Magallon v. Montejo*	"Married to Epifania Magallon" merely describes Martin's civil status; it does not prove the land belongs to a partnership with her.
11	*Cuenca v. Cuenca*	For homesteads, the time of acquisition is the perfection of the homestead claim, not the survey.
12	*Dela Peña v. Avila*	Proof that partnership funds were used is not required, but proof of acquisition during the marriage is an essential condition for the presumption (Francisco v. CA).
13	*Andrade v. Tan*	Before NCC 160 operates, the party invoking it must prove the property was acquired during the marriage; the children proved neither the date of acquisition nor the use of conjugal funds.
14	*Mendoza v. Reyes*	Proof of acquisition during the marriage suffices to make the NCC 160 presumption operate (Camia de Reyes; Laluan v. Malpaya); registration in one spouse's name does not destroy the conjugal character.
15	*Laperal v. Katigbak*	(From the earlier ruling in the same litigation) A debt contracted by the husband binds conjugal assets; under the NCC, the fruits of the wife's paraphernal property answer for the husband's debts only if they benefited the family. Obligations incurred under the old Code carry the vested right to reach conjugal property.
16	*Berciles v. GSIS*	Retirement gratuity with no named beneficiary accrues to the estate and passes by intestacy.
17	*Veloso v. Martinez*	Property a married woman inherits from her parent is acquired by gratuitous title and is her paraphernal property.
18	*Plata v. Yatco*	Property brought to the marriage is exclusive (NCC 148). Its conveyance and reconveyance during the marriage do not make it conjugal without proof that conjugal funds paid for the repurchase.
19	*Lim v. Garcia*	All property at dissolution is presumed conjugal (OCC 1407) unless specifically traced to separate funds; showing that one spouse brought more capital is not enough.
20	*Manotok Realty v. Court of Appeals*	The husband cannot administer or dispose of his wife's paraphernal property without a public instrument from her (NCC 136, 137). After her death he was neither owner nor administrator when he sold.
21	*Quintos de Ansaldo v. Sheriff of Manila*	The fruits of paraphernal property are conjugal assets, but they are not liable for the husband's personal obligations unless these benefited the family (OCC 1385, 1386); OCC 1408 is subject to that qualification.
22	*Zulueta v. Pan American World Airways*	Rights and damages arising from a contract entered into during the marriage, paid with conjugal funds, belong to the conjugal partnership.
23	*Palanca v. Smith, Bell & Co.*	Money the husband borrows on the credit of the wife's property becomes conjugal (OCC 1401(3)); a house built with it is conjugal and answers for the husband's debts (OCC 1408).
24	*Lim Queco v. Cartagena*	The wife administers her paraphernal property unless she transfers administration by notarial instrument (OCC 1384).
25	*Calimlim-Canullas v. Fortun*	Under NCC 158, buildings constructed with conjugal funds on one spouse's land make both land and building conjugal; the owner-spouse becomes a creditor of the partnership for the land's value, reimbursed at liquidation. Conversion retroacts to the construction (Padilla v. Paterno).
26	*Maramba v. Lozano*	A final judgment cannot be amended in substance through a nunc pro tunc order.

27	*Javier v. Osmeña*	The fruits of paraphernal property are conjugal and answer for the marriage expenses (OCC 1385, 1401); the husband's creditor may reach the fruits, not the paraphernal property itself.
28	*Vda. de Sta. Romana v. PCIB*	A debt the husband contracted for the benefit of the conjugal partnership (the unpaid price of a lot) is chargeable to the partnership.
29	*DBP v. Adil*	A debtor who signs a new note after prescription expressly renounces the prescription already obtained (NCC 1112).
30	*Luzon Surety Co. v. de Garcia*	A husband who acts as guarantor or surety for a third person does not act for the benefit of the conjugal partnership; the benefit goes to the third person (NCC 161(1)).
31	*BA Finance Corp. v. Court of Appeals*	A&L, established during the marriage, is presumed conjugal even though registered in Lily's name alone.
32	*Carlos v. Abelardo*	The US$25,000 was a personal loan, proved by Carlos' personal check, Maria's acknowledgment and the demand letter.
33	*Heirs of Aguilar-Reyes v. Mijares*	Under the NCC, the husband's alienation of conjugal realty without the wife's consent is voidable; she may sue during the marriage and within 10 years (NCC 166, 173).
34	*Beumer v. Amores*	An alien who knowingly buys Philippine land in violation of the Constitution (Art. XII, Sec. 7) cannot recover the price on dissolution, whether by equity or unjust enrichment (Muller v. Muller; Frenzel v. Catito).
35	*Santero v. CFI of Cavite*	Under NCC 188 (now FC 133), support during liquidation goes to the surviving spouse and the children without distinction; being of age, employed or married does not matter.
36	*Garcia v. Manzano*	The grounds for judicial separation of property (NCC 191; now FC 135) are limitative and exclusive; public policy disfavors separation during marriage.
37	*Lacson v. San Jose-Lacson*	Spouses may separate their property and dissolve the partnership during the marriage if judicial approval is obtained beforehand (NCC 190; now FC 134, 136), and creditors are not prejudiced.